

IN THE [COURT THAT GRANTED YOUR DISCHARGE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO SEAL AND RESTRICT FIRST OFFENDER RECORDS FOLLOWING EXONERATION AND DISCHARGE BEFORE JULY 1, 2026, PURSUANT TO O.C.G.A. § 42-8-62.2(c)

STATUTORY AUTHORITY

O.C.G.A. § 42-8-62.2(c) – An individual who was exonerated of guilt and discharged, as a matter of law or pursuant to a court order, prior to July 1, 2026 may petition the court that granted such discharge for an order to seal and make unavailable to the public the criminal file, docket books, criminal minutes, final record, all other records of the court and the defendant's criminal history record information in the custody of the clerk of court, including within any index. Notice of the petition shall be sent to the clerk of court and the prosecuting attorney, and notice by registered or certified mail or statutory overnight delivery is sufficient.

O.C.G.A. § 42-8-62.2(d) – The court shall order sealing within 90 days of the filing, with no findings required.

O.C.G.A. § 42-8-62.2(e) – The clerk seals within 60 days.

O.C.G.A. § 42-8-62.2(f) – The court shall also order law enforcement agencies, jails and detention centers to restrict, with compliance within 30 days.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Georgia in Sample County (synthetic sample venue) that granted the discharge, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.

4. Plaintiff is the State of Georgia.

III. FACTS AND CASE HISTORY

5. On or about 02/12/2019, Defendant was charged with Offence stated in the participant's own First Offender sentencing record (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 08/04/2023, the matter was resolved with the following disposition: Sentenced under the First Offender Act; sentence completed and Defendant exonerated and discharged

without an adjudication of guilt (synthetic sample disposition).

8. The offense grade was: Felony (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for restriction and sealing on the following basis: sealing and restriction under O.C.G.A. § 42-8-62.2(c) (Defendant states Defendant was exonerated of guilt and discharged before July 1, 2026).

10. Defendant states Defendant was actually sentenced under Georgia's First Offender Act in the original case (synthetic sample answer).

11. Defendant states Defendant completed the First Offender sentence without the court entering an adjudication of guilt (synthetic sample answer).

12. Defendant states Defendant was exonerated and discharged on the discharge date shown in Defendant's own court record, which is before July 1, 2026 (synthetic sample answer).

13. Defendant states a discharge order was actually entered in the case (synthetic sample answer).

14. Defendant states which office prosecuted the case for the county, as read from Defendant's own court record (synthetic sample answer).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the restriction and sealing of the criminal file, docket books, criminal minutes, final record, all other records of the court and the criminal history record information in the custody of the clerk of court, including within any index, in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to seal and restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Atlanta, GA 30303

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Notice of the petition shall be sent to the clerk of court and the prosecuting attorney. Notice is not a request for consent and there is no advance-consent requirement on this route; the statute creates no objection period and no objection-triggered hearing branch. Notice by registered or certified mail or statutory overnight delivery is sufficient; hand delivery or e-filing may also be used, certified in a certificate of service.

I certify that on _____, I served a copy of this Petition upon the clerk of court and the prosecuting attorney for the county (the District Attorney or the Solicitor-General, as applicable) at the following address:

[CLERK OF COURT AND PROSECUTING ATTORNEY SERVICE ADDRESSES – CONFIRM BOTH WITH THE CLERK OF THE COURT THAT GRANTED THE DISCHARGE]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT THAT GRANTED YOUR DISCHARGE – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA v. JOHN DOE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample City Police Department (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal and restrict access to all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.